

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
JOEL SALAS,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NYPD Detective EBONY S.
WILLIS, NYPD Detective BENJAMIN PEREZ, and NYPD
Officers JOHN and JANE DOE No. 1 – 10,**

Defendants.
-----X

Index No.:

SUMMONS

Basis of Venue:

Location Of Incident

Plaintiff Designates Kings
County as Place of Trial

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
December 19, 2023

By: David R. Kline, Jr
David R. Kline, Esq.
DRK Law, LLC
195 Montague Street, Suite 1419
Brooklyn, New York 11201
C: (917) 596-4320
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Attorneys for Plaintiff

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, NY 10007.

NYPD Detective EBONY S. WILLIS, Shield No. 4970, NYPD 83rd Precinct, 480 Knickerbocker Avenue, Brooklyn, NY, 11237.

NYPD Detective BENJAMIN PEREZ, Shield No. 4339, NYPD 83rd Precinct, 480 Knickerbocker Avenue, Brooklyn, NY, 11237.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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JOEL SALAS,

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**THE CITY OF NEW YORK, NYPD Detective EBONY S.
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Index No.:

VERIFIED COMPLAINT

JURY TRIAL DEMAND

TO THE SUPREME COURT OF THE STATE OF NEW YORK:

Plaintiff **JOEL SALAS**, by his attorneys, DRK Law, LLC, by David R. Kline, Esq.,
respectfully, upon information and belief, alleges the following for this Verified Complaint:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover monetary damages (special, compensatory, and punitive) arising out of defendants' violation of plaintiff's rights as secured by the Constitution of the United State of America, 42 U.S.C. § 1983, the laws of the State and City of New York, and the common law.

THE PARTIES

2. Plaintiff **JOEL SALAS** is a United States Citizen and was at all times relevant herein a resident of the State of New York.

3. Defendant **THE CITY OF NEW YORK** (“City” or “the City” or “Defendant City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant **THE CITY OF NEW YORK** maintains the New York City Police Department (“NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of New York State law, acting under the direction and supervision of the aforementioned municipal corporation, **THE CITY OF NEW YORK**.

5. Defendant **NYPD Detective EBONY S. WILLIS**, Shield No., 4970, was, at all times relevant to this Complaint, a police officer and detective employed by the **CITY**. At all times relevant herein, defendant **NYPD Detective EBONY S. WILLIS**, was assigned to work at the NYPD 83rd Precinct. In this role, defendant **NYPD Detective EBONY S. WILLIS** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, she was acting in the scope of her employment and under color of state law.

6. Defendant **NYPD Detective BENJAMIN PEREZ**, Shield No. 4339, was, at all times relevant to this Complaint, a police officer and detective employed by the **CITY**. At all times relevant herein, defendant **NYPD Detective BENJAMIN PEREZ**, was assigned to work at the NYPD 83rd Precinct. In this role, defendant **NYPD Detective BENJAMIN PEREZ** was a duly appointed and acting officer, servant, employee, and/or agent of the City of New York. At all relevant times, he was acting in the scope of his employment and under color of state law.

7. Defendant **NYPD Officers JOHN and JANE DOE No. 1 – 10**, were, at all times relevant to this Complaint, police officers employed by the **CITY**. In this role, Defendant **NYPD Officers JOHN and JANE DOE No. 1 – 10** were duly appointed and acting as officers, servants, employees, and/or agents of the City of New York. At all relevant times, they were acting in the scope of their employment and under color of state law.

JURISDICTION AND VENUE

8. This action is brought pursuant to the laws of the City and State of New York, 42 U.S.C. Act of 1871 § § 1983 and 1988, the Fourth and Fourteenth Amendments to the United States Constitution, *inter alia*.

9. Venue is proper in this county as the transactions and occurrences took place in Kings County, City and State of New York.

PROCEDURAL REUIREMENTS

10. Plaintiff has fulfilled all procedural requirements for filing suit, including complying with GML 50-e.

11. On November 16, 2022, Plaintiff served a Notice of Claim (“NOC”) on defendant **CITY** via the New York City, Office of the Comptroller’s “eClaim system.”

12. On August 23, 2023, plaintiff testified at a GML 50-h Hearing.

13. More than thirty (30) days have elapsed since the filing of the NOC in this case.

14. As of the date of this Amended Verified Complaint, Defendant **CITY** has neglected and/or refused to adjust and/or pay the Plaintiff’s claim.

15. This action was commenced within one year and ninety days of the occurrence of the actions and events upon which this action is based.

JURY DEMAND

16. Plaintiff demands a trial by jury.

STATEMENT OF FACTS

17. On April 11, 2022, plaintiff **JOEL SALAS** was a guest in an apartment located at 415 Evergreen Avenue, Brooklyn, New York 11221.

18. Plaintiff did not own and/or lease the apartment at 415 Evergreen, but rather, was just a guest of the owner.

19. At approximately 12:00 p.m., multiple NYPD officers stormed into the apartment.

20. Upon information and belief, the defendant NYPD officers were in plain clothes and had their guns drawn and pointed at plaintiff.

21. At the time the NYPD officers entered the apartment, plaintiff was standing in the kitchen.

22. After seeing the defendant NYPD officers with their guns drawn, plaintiff immediately threw himself on the ground for fear of being shot and killed. Plaintiff remained on the ground, facedown, waiting to the NYPD officers' instructions.

23. After several minutes, defendant **NYPD Officer JOHN DOE No. 1** stood over plaintiff, grabbed his arms, pinned them behind his back, and handcuffed his wrists together with metal cuffs. **NYPD Officer JOHN DOE No. 1** applied the handcuffs to tightly to plaintiff's wrists, that they cut off circulation to the area and caused him severe pain. Plaintiff

asked the NYPD officers to loosen the overly tight handcuffs, but instead of doing so, they tightened them, causing plaintiff more pain.

24. Upon information and belief, at some point before or after the defendant NYPD Officers arrested plaintiff, they searched his body. The NYPD Officer's search of plaintiff's person yielded no contraband, weapons, or evidence of criminal activity whatsoever.

25. Despite having no evidence that plaintiff had committed a crime, defendant NYPD officers arrested him anyway.

26. At no point relevant herein did plaintiff resist the defendant NYPD officers. He fully complied with every order he was given.

27. After they illegally searched and arrested plaintiff, the defendant NYPD Officers took him out of the apartment building, put him into the back of their marked NYPD police vehicle, and drove him in custody to the 83rd NYPD Precinct, located at 480 Knickerbocker Avenue, Brooklyn, New York, 11237.

28. At the 83rd NYPD Precinct, the defendant NYPD Officers searched plaintiff's body again and found no contraband, weapons, or evidence of criminal activity.

29. At the 83rd NYPD Precinct, the defendant NYPD Officers took several personal items from plaintiff, including, but not limited to: (1) \$13,000 in cash—the proceeds from his employment; (2) A Rolex wristwatch; (3) A gold Chain; and (4) Gold earrings.

30. Despite attempts to recover his property, plaintiff was never able to do so.

31. After the defendant NYPD Officers booked plaintiff, they placed him inside of an unsanitary holding cell that was covered in human feces.

32. Throughout the course of his confinement at the 83rd NYPD Precinct, plaintiff was interrogated, fingerprinted, and photographed by defendant NYPD officers.

33. Upon information and belief, while they held plaintiff in custody, defendant NYPD officers, including **NYPD Detective EBONY S. WILLIS** and **NYPD Detective BENJAMIN PEREZ**, knowingly and maliciously transmitted false and/or inaccurate and/or incomplete information to the Kings County District Attorney's Office wherein they falsely claimed that plaintiff had illegally possessed weapons and drugs.

34. After several hours, the defendant NYPD Officers took plaintiff from the precinct to Kings County Central Booking, located at 120 Schermerhorn Street, Brooklyn, New York 11201.

35. At Kings County Central Booking plaintiff was formally charged, via criminal complaint, with Criminal Possession in the Second Degree (NY P.L. § 265.03), a C violent felony, and related charges. Plaintiff entered a plea of not guilty to all charges.

36. Owing to the false information furnished to the by defendant NYPD officers, the arraignment court ordered plaintiff held on \$150,000 cash bail—an amount that he was not able to pay.

37. After arraignment plaintiff was taken in custody to Rikers Island to await trial.

38. While in Custody on Rikers Island plaintiff was subjected to abhorrent conditions, including, but not limited to: (1) Prolonged periods without food; (2) Prolonged periods without access to potable water; (3) No access to hygiene products and/or showers; (4) Being forced to sleep on a cold, concrete floor without a bed or blanket; (5) Being forced to endure freezing cold temperatures all day and night; (6) No communication with loved ones on the outside; and (7) Generally dangerous conditions, including the constant risk of battery and assault.

39. After approximately five (5) days as a pretrial detained person, plaintiff was released from custody. Plaintiff was released because the Kings County District Attorney's Office failed to secure an indictment against him within the time limits prescribed by NY C.P.L. § 180.80.

40. On September 23, 2022, after several court appearances, the Kings County District Attorney's Office dismissed the erroneous charges against plaintiff. Upon information and belief, the District Attorney dismissed the charges because no nexus existed between plaintiff and the contraband the defendant NYPD officers allegedly recovered from the apartment.

41. The charges against plaintiff were dismissed before indictment.

42. At no point relevant herein did plaintiff possess any weapon or contraband.

43. At no point relevant herein did plaintiff violate any laws.

44. At no point relevant herein did defendant NYPD Officers have the probable cause necessary to arrest plaintiff.

45. As a direct result of Defendants' actions, plaintiff spent approximately five (5) days illegally held in custody, endured physical pain, and suffered emotional and psychological injury.

46. Plaintiff also suffered monetary damages in the loss of his property.

47. As of the date of this Verified Complaint, plaintiff has not recovered any of the personal property that the defendant NYPD officers seized.

STATE LAW CLAIMS**CAUSE OF ACTION ONE****Common Law False Arrest**

48. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

49. The **CITY** Defendant and each individual NYPD Defendant, acting in concert, did, without probable cause, rob plaintiff **JOEL SALAS** of his freedom of movement.

50. As detailed in the preceding paragraphs, defendants did confine plaintiff without probable cause.

51. Plaintiff was conscious of his unlawful confinement.

52. Plaintiff did not consent to his unlawful confinement.

53. The defendants each deprived plaintiff knowingly, intentionally, recklessly, and negligently.

54. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

55. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

56. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

57. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION TWO**Assault**

58. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

59. The defendants, acting in concert, did make offensive contact with plaintiff **JOEL SALAS**' body and in doing so caused significant physical injury.

60. Plaintiff did not consent to any physical contact from any defendants.

61. The Defendants were acting in their official capacities as NYPD members and officers, under color of law.

62. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

63. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

64. As a direct and proximate cause of the Defendants' actions in this matter, plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION THREE**Battery**

65. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

66. The defendants, acting in concert, did make offensive contact with Plaintiff **JOEL SALAS**'s body and in doing so caused significant physical injury.

67. The defendants, acting in concert, did, through their intentional and/or reckless actions, put plaintiff in imminent apprehension of harmful contact.

68. Plaintiff did not consent to any physical contact from any defendants.

69. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

70. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

71. Defendant **CITY**, as employer of each of the NYPD Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

72. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION FOUR
Intentional Infliction of Emotional Distress

73. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

74. Defendant NYPD members and officers did, individually and in concert, intentionally engage in conduct against plaintiff **JOEL SALAS** that was so outrageous in character and extreme in degree, as to go beyond all possible bounds of decency. Specifically, *inter alia*, the NYPD defendants held plaintiff in handcuffs in a public hallway and on a public street.

75. The defendant NYPD Officers' conduct towards plaintiff was extreme and outrageous.

76. The defendant NYPD officers' conduct had a substantial probability of causing severe emotional distress to plaintiff.

77. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

78. Those NYPD Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such unlawful conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

79. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

80. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION FIVE
Negligent Infliction of Emotional Distress

81. Plaintiff repeats and realleges every allegation set for in the preceding paragraphs.

82. Defendant NYPD members and officers did, individually and in concert, intentionally engage in conduct against plaintiff **JOEL SALAS** that was so outrageous in character and extreme in degree, as to go beyond all possible bounds of decency. Specifically,

inter alia, the NYPD defendant held Plaintiff in handcuffs in a public hallway and on a public street.

83. The defendant NYPD members and officers' conduct towards plaintiff was extreme and outrageous.

84. The defendant NYPD members and officers' conduct had a substantial probability of causing severe emotional distress to plaintiff.

85. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

86. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such unlawful conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

87. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

88. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION SIX
Negligent Hiring, Retention, and Supervision

89. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

90. Upon information and belief, the defendant NYPD Officers involved in this incident were unfit and incompetent to serve as NYPD police officers and members.

91. Upon information and belief, defendant **CITY's** negligence in screening, hiring, training, disciplining, and retaining these defendant NYPD Officers caused or proximately caused each of Plaintiffs' injuries, including, but not limited to, his emotional and psychological injuries.

CAUSE OF ACTION SEVEN
Violation of The New York City Administrative Code § 8-802 and § 8-803,
Unlawful Search and Seizure

92. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

93. The **CITY** defendant and each individual NYPD defendant, acting in concert, did, without probable cause, rob Plaintiff **JOEL SALAS** of his freedom of movement.

94. Plaintiff is a "person aggrieved," as defined by New York City Administrative Code § 8-801.

95. As detailed in the preceding paragraphs, defendant NYPD Officers did confine plaintiff without probable cause.

96. Plaintiff was conscious of his unlawful confinement.

97. Plaintiff did not consent to his unlawful confinement.

98. The defendant NYPD Officers each deprived plaintiff of his freedom of movement knowingly, intentionally, recklessly, and negligently.

99. Defendant NYPD Officers are "covered individuals," as defined by New York City Administrative Code § 8-801.

100. The defendants were acting in their official capacities as NYPD officers and members, under color of law.

101. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

102. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

103. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION EIGHT
Violation of The New York City Administrative Code § 8-802 and § 8-803,
Unlawful Use of Excessive Force

104. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

105. The **CITY** defendant and each individual NYPD defendants, acting in concert, did, without probable cause, use excessive force against plaintiff.

106. Plaintiff is a "person aggrieved," as defined by New York City Administrative Code § 8-801.

107. The defendant NYPD Officers, acting in concert and under color of state law, did, without probable cause or legal justification, use excessive force against plaintiff.

108. As detailed in the preceding paragraphs, defendant NYPD Officers did, *inter alia*, physically grab plaintiff and use excessive force against him. Moreover, defendant NYPD officers did point their guns directly at his face and head.

109. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

110. Defendant NYPD officers are “covered individuals,” as defined by New York City Administrative Code § 8-801.

111. The defendants were acting in their official capacities as NYPD officers and members, under color of law.

112. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

113. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

114. As a direct and proximate cause of the defendants’ actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

FEDERAL LAW CLAIMS

CAUSE OF ACTION NINE

42 U.S. Code § 1983 – Deprivation of Fourth Amendment Rights to be Free from Unreasonable Searches and Seizure

115. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

116. The **CITY** Defendant and each individual Defendant NYPD Officer, acting in concert, did willfully, knowingly, and with the specific intent, did deprive Plaintiff **JOEL SALAS** of his constitutional rights secured by 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution.

117. The **CITY** Defendant and each individual NYPD Defendant, acting in concert, did, without probable cause, rob plaintiff **JOEL SALAS** of his freedom of movement.

118. As detailed in the preceding paragraphs, defendants did physically confine plaintiff without probable cause.

119. Plaintiff was conscious of his unlawful confinement.

120. Plaintiff did not consent to his unlawful confinement.

121. The defendants each deprived plaintiff knowingly, intentionally, recklessly, and negligently.

122. The defendants were acting in their official capacities as NYPD members and officers, under color of law.

123. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

124. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

125. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

CAUSE OF ACTION TEN
42 U.S. Code § 1983 – Deprivation of Fourteenth Amendment Right of Due
Process / Fourth Amendment Excessive Force

126. Plaintiff repeats and realleges every allegation set forth in the preceding paragraphs.

127. The **CITY** defendants and each individual defendant NYPD Officer, acting in concert, did willfully, knowingly, and with the specific intent, did deprive plaintiff **JOEL SALAS** of his constitutional rights secured by 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the United States Constitution.

128. The **CITY** defendant and each individual NYPD defendant, acting in concert, did, without probable cause, use excessive force against plaintiff.

129. As detailed in the preceding paragraphs, Defendant NYPD Officers did, *inter alia*, physically grab plaintiff and use excessive force against him. Moreover, defendant NYPD Officers did point their guns directly at his face and head.

130. Those NYPD defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such unlawful conduct, had a duty to intervene and prevent such unlawful conduct, and knowingly and intentionally failed to intervene.

131. Defendant **CITY**, as employer of each of the NYPD defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

132. As a direct and proximate cause of the defendants' actions in this matter, plaintiff sustained, *inter alia*, physical, emotional, psychological, reputational, and economic damages, as well as loss of his civil rights.

WHEREFORE, Plaintiff **JOEL SALAS** respectfully requests judgement against Defendants as follows:

- a. An award of compensatory damages against all defendants in an amount to be determined at trial.
- b. An award of special damages against all defendants in an amount to be determined at trial.
- c. An award of punitive damages against all defendants in an amount to be determined at trial.
- d. An award of reasonable attorney's fees and costs.
- e. Such other relief that this Courts deems just and proper, together with attorney's fees, interest, costs, and disbursements.

Dated: Brooklyn, New York
December 19, 2023

By: David R. Kline, Jr
David R. Kline, Esq.
DRK Law, LLC
195 Montague Street, Suite 1419
Brooklyn, New York 11201
C: (917) 596-4320
E: David@DRKlineLaw.com

Attorneys for Plaintiff

ATTORNEY VERIFICATION

David R. Kline, an attorney duly licensed to practice law in the Courts of the State of New York, affirms and states as following under penalty of perjury:

I am a member of the law firm of **DRK LAW, LLC**, I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon personal knowledge, are based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

Dated: Brooklyn, New York
December 19, 2023

By: David R. Kline, Jr
David R. Kline, Esq.
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